IN THE HIGH COURT OF ORISSA AT CUTTACK

JCRLA No.278 of 2025
CNR- ODHC010955822025

Dhirenya @ Muni Swain .... ***Appellant/ Petitioner***

Represented by Adv.-

-versus-

State of Odisha .... ***Respondent/ Opp. Party***

Represented by Adv.-
Mr. R.B. Dash, ASC

CORAM:
HON'BLE MR. JUSTICE SIBO SANKAR MISHRA

ORDER
07.08.2026
(Hybrid mode)

Order No.

01. **1.** This Jail Criminal Appeal has been received from the jail with a delay of 70 days. The appellant has been convicted on the charges of commission of the offences under Sections 341/323/325/354-A of IPC and Section 8 of the POCSO Act and Section 341 IPC by the learned Ad-hoc Additional Sessions Judge, FTSC, Kendrapara in G.R. Case No.37 of 2024 and on that count, sentenced him to undergo S.I. for fifteen days and to pay a fine of Rs.200/- (Rupees two hundred), in default, to undergo S.I. for two days

more for the offence U/S. 341 of IPC, R.I for six months and to pay a fine of Rs.500/- (Rupees five hundred), in default, to undergo R.I. for one month more for the offence U/S. 323 IPC, R.I. for four years and to pay a fine of Rs.20,000/- (Rupees twenty thousand), in default, to undergo R.I. for six months more for the offence U/S. 325 of IPC, R.I. for two years and to pay a fine of Rs.2,000/- (Rupees two thousand), in default, to undergo R.I. for three months more for the offence U/S. 354-A of IPC and to undergo R.I. for four years and to pay a fine of Rs.20,000/- (Rupees twenty thousand), in default, to undergo R.I. for three months more for the offence U/S. 8 of the POCSO Act.

2. The delay of 70 days in filing the Jail Criminal Appeal stands condoned.

3. Admit.

4. Call for the trial Court records.

5. Since this is a case involving the POCSO Act besides other offences, learned counsel for the State shall serve a copy of the notice of this appeal memo on the informant/victim of the case in Patkura P.S. Case No.125, dated 12.05.2024 and he/she shall be intimated that the appellant has moved an application for bail and he/she can engage a counsel to oppose the prayer for bail and if, he/she is financially

unsound to engage any counsel, the High Court Legal Services Authority would engage counsel for such purpose and, if he/she agrees to that, Vakalatnama shall be collected.

6. This Court appoints Ms. Kirtika Banerjee, Advocate, Mobile No.6289562679 to conduct the case on behalf of the appellant as Amicus Curiae.

7. The Registry is directed to contact and supply copy of the appeal memo to Ms. Kirtika Banerjee, learned Amicus Curiae and to reflect her name in the cause list. Learned Amicus Curiae may move bail application on behalf of the appellant.

8. List this appeal along with the bail application, if any, immediately after the TCR is received.

(Sibo Sankar Mishra)
Judge

Subhasis

Signature Not Verified
Digitally Signed
Signed by: SUBHASIS MOHANTY
Designation: Personal Assistant
Reason: Authentication
Location: High Court of Orissa, Cuttack.
Date: 11-Aug-2026 17:11:31